

Reasonable attorney's fees shall be fixed by the court, and shall be an element of the costs of suit.
Civ. Code § 1717(a)

Section 7 of the contract states that "[i]f the account is referred to collection the Lessee agrees to pay collection costs and attorney's fees." This case was filed as a breach of contract seeking, among other causes of action, enforcement and collection of payment for the use of rental equipment pursuant to the terms of the contract. Therefore, Section 7 of the contract would apply to this matter. Additionally, in the judgment entered on March 6, 2026, the Court ordered that the judgment include attorneys' fees upon the filing of a motion.

The Court then turns to whether the requested attorneys' fees are reasonable. Plaintiff has provided evidence that Randall Nelson has been a practicing attorney for thirty-four years. The requested hourly rate averages \$413.02. This is reasonable given the length of time that counsel has been practicing. The Court has reviewed the billing records provide and it does not appear that any time spent was unreasonable.

The motion is **GRANTED**. The Court fixes attorneys' fees in this matter at \$4,264.50. Plaintiff provided a proposed Order that will be executed by the Court.

HANNAN VS. ALAMO RV PARK AND MOTEL, LLC, ET AL.
CASE NUMBER: 26CV-0209992

Tentative Ruling on Motion for Leave to file a Second Amended Complaint: Plaintiffs, Ralph Hannan and Renee Hannan, seek leave to file a Second Amended Complaint. The amendments provide additional facts in support of 1) an alter ego theory of liability against Defendant Gary Trolesi; 2) Defendant Alamo RV Park and Motel, LLC ("Alamo"), Gary Trolesi, and Vicki Wilson's knowledge of the subject animal; 3) Defendant Alamo, Gary Trolesi, and Vicki Wilson's negligent supervision, training, control, and retention causes of action; and 4) punitive damages. The Motion is unopposed.

Code of Civil Procedure § 473(a)(1) permits any pleading to be amended in furtherance of justice and on any terms as may be proper, after notice to the adverse party. The Court's discretion in this regard will usually be exercised liberally to permit amendment. *Nestle v. Santa Monica* (1972) 6 Cal. 3d 920, 939. Leave to amend should be liberally granted so long as there is no statute of limitations issue or prejudice to the opposing party. *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 240.

Plaintiffs seek to add these supporting facts pursuant to an agreement between Plaintiffs and Defendants Alamo, Gary Trolesi, and Vicki Wilson reached during meet and confer communications to negate the filing of a demurrer to the First Amended Complaint by Defendants. It does not appear any party will be prejudiced by the amendment. The Motion is **GRANTED**. A proposed order has been lodged and will be executed. Plaintiffs are granted ten days leave to file the Second Amended Complaint.